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Name: Florac Albi Athi sayaraj F

Reg. No: 192512277

Course: JTA1401 - Ethical
Hacking

Your client's competitor secretly offers you money to share findings from a penetration test you conducted for the client. Analyze this scenario in terms of professional ethics, confidentiality and potential legal consequences.

This scenario can be systematically analysed across three distinct frameworks: professional ethics, contractual confidentiality and statutory legal consequences.

1 Professional Ethics and Industry Frameworks

In professional cyber security, technical skill is secondary to trust. An ethical framework dictates how a practitioner manages privileged knowledge when faced with external pressures or illicit financial incentives.

Principle of Absolute Loyalty

A penetration tester operates as a fiduciary agent for the client during an engagement. This relationship requires absolute loyalty.

Accepting payment from a competitor to expose a client's vulnerabilities is a direct violation of this loyalty, transforming a defensive asset into an insider threat.

Systemic Trust and Industry Reputation

The cybersecurity industry relies heavily on the assumption that practitioners will not weaponize the vulnerabilities they discover. When an analyst breaches this trust the damage extends beyond.

=> Erosion of client trust

=> Impact on the Firm

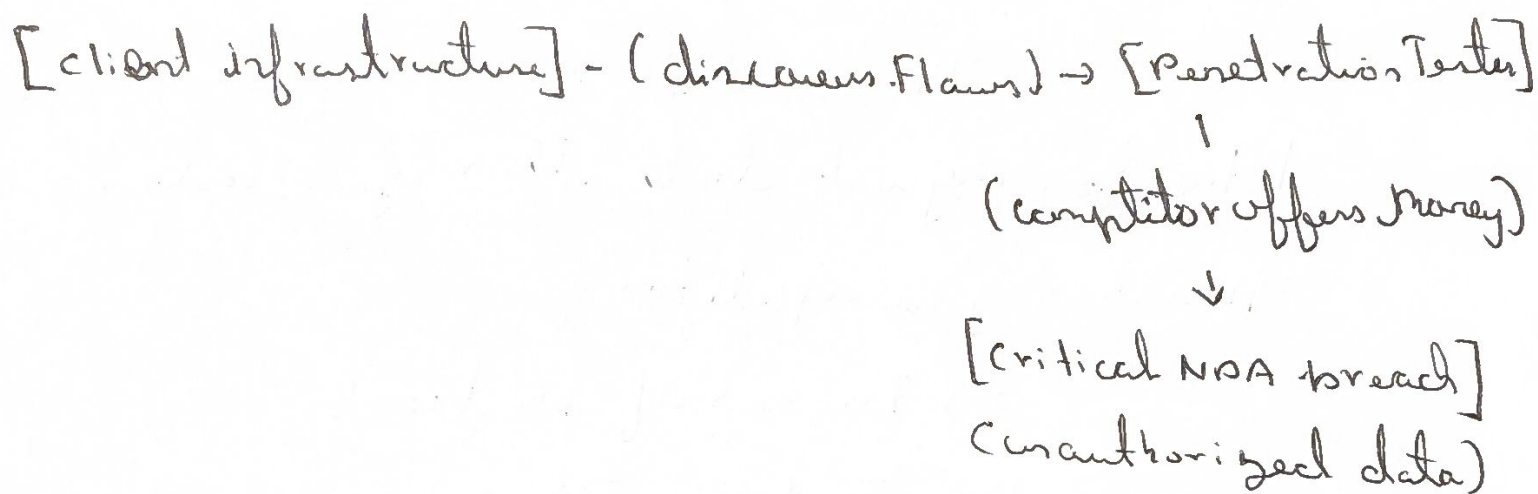
=> Professional De certifications

2 Confidentiality and Contractual obligation

Before single packet is sent during a penetration a complex web of legal agreement establishes the boundaries of the engagement.

Non-Disclosure Agreements

The NDA is the primary mechanism securing the relationship. It strictly defines "confidential information" - which explicitly includes vulnerability reports



Rule of Engagement and Master Services Agreement

Rule of Engagement :

This document defines the technical scope (testing hours, social engineering limits).

Master Services Agreements :

The MSA generally dictates data retention and destruction policies.

3 Potential legal consequences:

Selling corporate vulnerabilities to a competitor transitions the scenario from an ethical failure into severe criminal and civil matter

Civil liability and Economic damages.

The client holds strong grounds for civil litigation against both the rogue tester and the purchasing competitor.

=> Breach of contract

=> Tortious Interference

=> Misappropriation of Trade secrets

Criminal prosecution:

The unauthorized transfer of highly security data for financial gain triggers severe federal and state criminal statutes

=> Computer fraud and abuse Act

=> Economic Espionage Act

=> Wire fraud

=> Money Laundering & Extortion

4 The correct professional Response

Faced with an illicit financial offer from a competitor, a professional penetration tester has a singular, clear path of action.

Immediate Rejection and Cessation of contact

The tester must immediately reject the offer in writing establishing a clear paper trail showing no compliance or negotiation took place.

Documentation and Evidence presentation.

Every piece of communication from the competitor - including email, phone logs, text messages, or physical notes - must be preserved in forensically sound manner.

Escalation protocols:

=> Internal corporate counsel

=> Client notification

=> Law enforcement Referral.